



CHAPTER 1.

An Act to provide for the transfer of the water undertaking of the Ventnor Gas and Water Company to the urban district council of Ventnor to authorise the Council to supply water in and in the neighbourhood of their district and for other purposes.

A.D. 1931.

[8th July 1931.]

WHEREAS by the Ventnor Gas and Water Act 1866 the Ventnor Gas and Water Company (hereinafter called "the Company") were incorporated and were authorised to supply gas and water in the parish of Newchurch (otherwise Newchurch South) and parts of the parishes of Godshill Bonchurch and Saint Lawrence all in the Isle of Wight and the county of Southampton :

And whereas the urban district of Ventnor has been formed from parts of the said parishes of Newchurch and Godshill and is under the management and local government of the Ventnor Urban District Council (hereinafter called "the Council") :

And whereas the Company have agreed with the Council for the transfer to the Council of the water undertaking of the Company and it is expedient that the agreement a copy of which is set forth in the First Schedule to this Act should be confirmed and that provision should be made for carrying such transfer into effect and for enabling the Council to carry on the said undertaking as provided by this Act :

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And whereas it is expedient to empower the Council to supply water in the urban district of Ventnor and the parishes of Bonchurch and Saint Lawrence and in the parts defined in this Act of the parishes of Wroxall and Godshill in the rural district of the Isle of Wight in the administrative county of the Isle of Wight :

And whereas by an agreement dated the fifteenth day of September eighteen hundred and sixty-four and made between the Isle of Wight Railway Company (hereinafter called "the railway company") of the one part and Augustus Frederick Livesay of the other part (to the benefit of which agreement the Company now are or claim to be entitled) it was provided that the said Augustus Frederick Livesay his heirs executors administrators and assigns should at all times for ever thereafter and on the due observance and performance on his part of the several articles and agreements contained in the said agreement have the exclusive right liberty and privilege to have and receive from the waste pipe of the reservoir mentioned in the said agreement at such place as the railway company might appoint for that purpose the whole of the surplus water arising flowing or to arise or flow from or through or which might thereafter arise flow accrue or be found upon along or through the whole course of the railway company's tunnel mentioned in the said agreement and not required for the purposes of the railway company as a railway company and it was (inter alia) further agreed that the railway company at the expense in all things of the said Augustus Frederick Livesay his executors administrators and assigns should construct and for ever thereafter at the like expense in all things maintain a reservoir to be for ever thereafter the property of the railway company for the purpose of the railway company taking therefrom such quantities of the water collected therein from the said tunnel as the railway company might require for any of the purposes of the said railway :

And whereas the railway company did not maintain the said reservoir but a reservoir has been constructed on the lands of the Company and has been maintained by the Company and the railway company and the Company have entered into agreements for the supply by the Company to the railway company of the quantities

of water which the railway company have required and the railway company have paid the Company from time to time the sums agreed between them for the supply of the said water : A.D. 1931.

And whereas it is expedient to enact that the said reservoir shall be the property of the Council and that the Council shall be entitled for ever to receive from the Southern Railway Company (the successors of the railway company) the water which can be collected from the said tunnel of the Southern Railway Company by means of the existing pipes connected to the said reservoir :

And whereas it is expedient to confer further powers upon the Council in relation to the supply of water and to make further provision with reference to the water undertaking transferred to them under the powers of this Act :

And whereas it is expedient to make further provision with regard to the finances of the Council :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows :—

The purchase of the water undertaking of the Company authorised by this Act	£ 21,500
The purchase of lands and easements	1,000
Service tanks	3,500
Reconstruction of buildings &c. ...	1,000
Pumping machinery	1,500
New mains extensions of mains and other waterworks purposes ...	6,750

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Ventnor Urban District Council Act 1931.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Acquisition of water undertaking.

Part III.—Waterworks and lands.

Part IV.—Supply of water.

Part V.—Financial and miscellaneous.

Incorporation of
general
Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely) :—

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the taking of lands otherwise than by agreement);

(2) The Waterworks Clauses Act 1847 except—

(a) the words “ with the consent in writing “ of the owner or reputed owner of any such “ house or of the agent of such owner ” in section 44;

(b) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) section 83 (with respect to the yearly receipt and expenditure of the undertakers); and

(3) The Waterworks Clauses Act 1863.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts 1875 to 1925 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

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Interpreta-
tion.

(2) In this Act unless the subject or context otherwise requires—

“ The district ” means the urban district of Ventnor ;

“ The Council ” means the urban district council of Ventnor ;

“ The clerk ” means the clerk to the Council and includes any person duly authorised to discharge temporarily the duties of that office ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the district ;

“ The Company ” means the Ventnor Gas and Water Company ;

“ The scheduled agreement ” means the agreement dated the twenty-seventh day of November one thousand nine hundred and thirty and made between the Company of the one part and the Council of the other part and set out in the First Schedule to this Act ;

“ The day of transfer ” has the same meaning as in the scheduled agreement ;

“ The water undertaking of the Company ” means so much of the undertaking of the Company as comprises the water undertaking of the Company and includes—

all the lands buildings waterworks reservoirs tanks wells streams springs waters water supplies sources of supply adits machinery mains pipes plant and apparatus contracts plans engineering reports books and other documents and stores and all other the property of the Company and the rights powers easements and privileges vested in and belonging to or had or enjoyed by the Company exclusively in connection with the water undertaking of the Company and the full benefit of all contracts and agreements

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entered into by the Company in connection with the water undertaking of the Company; but does not include—

(i) any lands buildings works machinery mains pipes plant and apparatus contracts plans engineering reports books or other documents or stores rents rates book and other debts or sums of money due to the Company or any other the property of the Company and the rights powers easements and privileges vested in and belonging to or had or enjoyed by the Company in connection with the gas undertaking of the Company;

(ii) the directors' minute books and other books and papers relating to the shareholders members and constitution of the Company; and

(iii) the rates rents and book and other debts or sums of money received by or due to the Company or accrued due at the day of transfer in respect of or in connection with the water undertaking of the Company;

“The water undertaking” means the water undertaking of the Council;

“The Minister” means the Minister of Health;

“The water limits” means the limits within which the Council are for the time being authorised to supply water;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to

be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1931.
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“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council;

“Telegraphic line” has the same meaning as in the Telegraph Act 1878.

5. The Council shall not exercise the powers conferred upon them by Part III (Waterworks and lands) and Part IV (Supply of water) of this Act until the day of transfer. Commence-
ment of
Parts III
and IV of
Act.

PART II.

ACQUISITION OF WATER UNDERTAKING.

6.—(1) The scheduled agreement is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties in writing under their respective common seals. Confirmation
of
scheduled
agreement.

(2) On the payment to the Company of the sum of twenty-one thousand five hundred pounds subject to the provisions of the scheduled agreement the water undertaking of the Company shall by virtue of this Act and without further assurance or other authority

A.D. 1931. — become and shall thenceforth be transferred to and be vested in and belong to the Council free from any then existing debentures mortgages debts incumbrances obligations or liabilities whatsoever of the Company.

Receipt for purchase money.

7. The receipt in writing of three directors of the Company for any money paid to the Company shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss mis-application or non-application thereof and if the Council are unable to obtain any such receipt from the directors of the Company they may pay the money into the Bank of England in the name of the Accountant-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for such money which shall have the same effect as the receipt of three directors of the Company.

Exercise of Company's powers until transfer.

8. Until the day of transfer the Company shall maintain and carry on the water undertaking of the Company as heretofore in the ordinary course of business maintaining normal quantities of consumable stores but the Company shall not without the previous consent of the Council under the hand of the clerk make or enter into any new contract agreement liability or other obligation in respect thereof which shall involve a capital expenditure exceeding one hundred pounds.

Evidence of transfer.

9. The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the Company or by the cashier of the Bank of England shall (unless it can be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer of the water undertaking of the Company to the Council.

Distribution of consideration for transfer amongst shareholders of Company.

10.—(1) The said sum of twenty-one thousand five hundred pounds shall be applied by the Company as follows :—

(a) In paying off the mortgage bonds of the Company outstanding at the passing of this Act amounting to nine thousand one hundred and fifty pounds;

- (b) In distributing amongst the holders of ordinary and preference shares of the Company whose names appear in the Company's books on the day of transfer the sum of eleven thousand five hundred and thirty-five pounds in the following proportions (that is to say) :— A.D. 1931.

To the holders of the one thousand five hundred original shares of twenty pounds each there shall be distributed the sum of six pounds in cash in respect of each such share making a total of nine thousand pounds;

To the holders of the four hundred and forty five additional shares of twenty pounds each there shall be distributed the sum of five pounds in cash in respect of each such share making a total of two thousand two hundred and twenty-five pounds;

To the holders of the sixty-two preference shares of twenty pounds each there shall be distributed the sum of five pounds in cash in respect of each such share making a total of three hundred and ten pounds;

- (c) In applying the balance of eight hundred and fifteen pounds in the payment of any costs and expenses falling upon the Company in connection with or consequent upon the transfer of the water undertaking of the Company and for the general purposes of the Company.

(2) Every holder of ordinary and preference shares in the capital of the Company shall after the day of transfer be entitled to receive from the Company in respect of each share held by him the sum of cash which under the provisions of the last preceding subsection of this section is payable to him.

On the payment to such holder in respect of each share held by him of such sum of cash the nominal value of and the amount paid up on each such share in every class shall be reduced by the sum of five pounds :

Provided that no holder of any shares in the capital of the Company shall be entitled to receive any such sum of cash as aforesaid until he has produced to the Company

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(3) All such sums of cash paid under the foregoing provisions of this section to the holders of ordinary and preference shares of the Company shall be held in the same rights upon the same trusts (if any) and subject to the same provisions charges and liabilities (if any) as those in or upon or subject to which the shares of the Company in respect of which the said sums of cash are paid were held immediately before the day of transfer and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any deed will or other instrument disposing of or affecting any such shares and trustees executors or administrators and all other persons in any representative or fiduciary capacity and persons under disability may and shall accept such sums of cash in part substitution for the shares of the Company held by them and may retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with the proceeds of sale of such shares of the Company.

Reduction
of capital of
Company. **11.** As from the day of transfer the paid up share capital of the Company shall be deemed to be reduced by the sum of five pounds in respect of each ordinary and preference share of the Company.

Company to
make up
accounts. **12.** The Company shall at the cost of the Council as soon as possible after the day of transfer make up the accounts of the water undertaking of the Company for the half-year immediately preceding the day of transfer as nearly as may be in the usual form and have the same audited by the auditors of the Company and shall deliver copies of such accounts to the Council. Such accounts when so audited shall be accepted by the Company and the Council as evidence of all matters of account stated therein.

13. As from the day of transfer all the powers duties and obligations of the Company under the Ventnor Gas and Water Act 1866 and the Ventnor Gas and Water Order 1879 relative to the water undertaking of the Company shall cease to be exerciseable by or binding on the Company.

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Powers of
Company in
respect of
their water
undertaking
to cease.

14.—(1) Subject as between the Council and the Company to the provisions of the scheduled agreement and without prejudice to any remedy over by the Council or the Company against the other of them under that agreement no action suit prosecution or other proceeding whatsoever commenced or cause of action suit prosecution or other proceeding whatsoever either by or against the Company in relation to any property right privilege debt liability or obligation transferred to the Council shall abate or be discontinued or prejudicially affected by reason of the transfer to the Council of the water undertaking of the Company but the same shall continue and take effect either in favour of or against the Council in the same manner in all respects as the same would have continued and taken effect in relation to the Company if such transfer had not been made.

Actions &c.
not to abate.

(2) All rates rents and charges in connection with the water undertaking of the Company which have been lawfully made charged or imposed or which are due on or before the day of transfer shall in respect of the period up to the day of transfer belong to the Company and in respect of the period after the day of transfer belong to the Council and a proper apportionment shall be made All such rates rents and charges shall continue in force and be due and payable to and shall be collected recovered or enforced by the Council and the Council shall pay over to the Company any part of such rates rents or charges as shall properly belong to the Company.

(3) Subject to the provisions of the scheduled agreement all agreements conveyances contracts deeds and other instruments entered into or made with or by the Company and in force at the day of transfer shall after the day of transfer so far as the same relate to or affect the water undertaking of the Company be as binding and of as full force and effect in every respect against or in favour of the Council and may be continued and enforced as fully and effectually as if instead of the Company the Council had been a party thereto.

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(4) All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the Company shall be admitted in evidence in respect of the same or the like matter for or against the Council.

Application
to Company
of Gas
Undertak-
ings Acts.

15. As from the passing of this Act the Company shall be deemed and shall continue to be incorporated for the purposes only of supplying gas and of otherwise carrying on the gas undertaking of the Company as undertakers within the meaning of the Gas Undertakings Acts 1920 and 1929.

PART III.

WATERWORKS AND LANDS.

Power to
maintain
&c. exist-
ing water-
works.

16.—(1) Subject to the provisions of this Act the Council may continue maintain and repair and from time to time alter improve enlarge deepen extend and renew or discontinue the waterworks constructed by the Company and their predecessor vested in or belonging to the Council by virtue of this Act including the reservoir referred to in the preamble to this Act and may use and employ the same for the purpose of taking intercepting pumping and impounding water and may take intercept pump and impound any waters which can be taken intercepted pumped or impounded by such waterworks and shall have the exclusive right liberty and privilege to have and receive from the Southern Railway Company in the said reservoir (so far as that company can lawfully confer such right liberty and privilege) the whole of the water arising flowing or to arise flow accrue or be found along or through the whole course of the tunnel of the Southern Railway Company from Wroxall to the Quarries at Ventnor upon condition that the Council pay the said Company from time to time the cost of maintaining the pipes in the said tunnel and connecting the said tunnel with the said reservoir necessary for collecting the said water and conveying the same to the said reservoir.

(2) The Council may from time to time extend the works vested in them by this Act and may use those works and pipes for the supply of and may sell and supply water within the water limits under the provisions of this Act and the Council shall in respect of those works and pipes and the maintenance and future use regulation and

enlargement thereof have the powers and be subject to the provisions of this Act and of the Acts incorporated wholly or in part with this Act so far as the same relate to the water undertaking and the same shall be deemed to be and shall be and form part of the water undertaking. A.D. 1931.

(3) In addition to the works referred to in subsection (1) of this section the Council may upon the lands for the time being comprised in the water undertaking make and maintain all such buildings machinery works service tanks water towers and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the said works or any of them but nothing in this subsection shall exonerate the Council from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

17. For the protection of the Southern Railway Company (in this section referred to as "the railway company") the following provisions shall unless otherwise agreed in writing between the Council and the railway company apply and have effect (that is to say):—
For protection of Southern Railway Company.

(1) Nothing in this Act shall (a) prejudice or affect the right of the railway company to maintain or alter the tunnel referred to in the section of this Act of which the marginal note is "Power to maintain &c. existing water works" or their railway or works or (b) impose upon the railway company any obligation to maintain the said tunnel :

(2) (a) The railway company shall when so requested in writing from time to time by the Council execute such works as may be necessary for the maintenance repair or renewal of any water pipes and apparatus of the Council situate in on or under the said tunnel or the property of the railway company Provided always that the railway company may if they consider it necessary so to do for the protection or safety of the said tunnel or their said railway execute such works without previous request in writing from the Council ;

(b) The Council shall repay to the railway company the expense reasonably incurred by

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them in executing the works referred to in this subsection :

- (3) Any additional expense which the Company may reasonably incur in altering or maintaining the said tunnel railway or works by reason of the existence of the said water pipes and apparatus of the Council in on or under the said tunnel or the property of the railway company shall be paid by the Council to the Company :
- (4) Any difference which may arise between the Council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Limiting
powers of
Council to
abstract
water.

18. The Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limits of
supply.

19. The limits within which the Council may supply water under the powers of this Act are the district and the following parishes and parts of parishes in the rural district of the Isle of Wight in the administrative county of the Isle of Wight (namely) :—

The parishes of Bonchurch and Saint Lawrence ;

So much of the parish of Wroxall as is south-east of an imaginary straight line drawn in a south-westerly direction from the junction of the boundaries of the urban district of Shanklin and the parishes of Bonchurch and Wroxall to the most northerly point of the district ;

So much of the parish of Godshill as is south and south-west of an imaginary straight line drawn from the junction of the boundaries of the district and the parishes of Wroxall and Godshill to the most northerly point on Stenbury Down of the boundary of the parish of Whitwell.

20.—(1) Subject to the provisions of this Act the Council in addition to any other lands acquired or held by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of the water undertaking but (except with the consent of the Minister) the quantity of lands held by the Council in pursuance of this section shall not at any time exceed ten acres.

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Power to
purchase
additional
lands by
agreement.

(2) The Council may on all or any of such additional lands and also on all or any of the lands for the time being held by them under the powers of this Act execute for the purposes of or in connection with the water undertaking any of the works (other than wells and works for taking or intercepting water) and exercise any of the powers mentioned in or conferred by section 12 (Undertakers subject to provisions of this and the special Act may execute the works herein named) of the Waterworks Clauses Act 1847.

(3) Provided that the Council shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incidental to or connected with the water undertaking but the restrictions of this section shall not apply in respect of lands leased or sold by the Council.

21. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons
under
disability
may grant
easements
&c.

22.—(1) Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration

Power to
retain sell
&c. lands.

A.D. 1931. — and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any other local Act for the time being in force in the district and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(2) The Council shall not (unless the Minister otherwise direct) sell lease exchange or otherwise dispose of any of the lands to which this section applies except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the Minister is necessary or has been obtained.

(3) Nothing in this section shall be taken to dispense with the necessity for obtaining the consent of any Government department to any sale lease appropriation or other disposition of any lands of the Council in any case in which such consent would have been required if this Act had not been passed.

(4) Nothing in this section contained shall release the Council or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Council or any person from or through whom the Council may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds of
sale of sur-
plus lands.

23.—(1) So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital

moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this or any other Act and such application shall be in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister.

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(2) Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

24.—(1) For the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Council are empowered to take the Council may by agreement purchase take on lease or otherwise acquire any lands easements or rights and may hold such lands and any other lands which the Council may have acquired for the purposes of the water undertaking so long as they shall deem it necessary or expedient for those purposes :

Power to hold lands and exercise powers for protection of waters.

Provided that the Council shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor without the approval of the Minister erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Council.

(2) The Council may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses catchpits and other

A.D. 1931. — works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Council are empowered to take from being polluted and the Council may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Council or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters which the Council are for the time being authorised to take.

Reservation
of water
rights &c.
on sale.

25. The Council on selling any lands acquired by them in connection with the water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Dwelling-
houses for
employees
and other
buildings.

26. The Council may purchase or take on lease and maintain houses and buildings for persons in their employment in connection with the water undertaking and the Council may also erect maintain and let any such buildings upon any land for the time being belonging or leased to the Council for those purposes.

Discharge
of water
into
streams.

27.—(1) For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any reservoir conduit line of pipes or other work of the Council the Council may cause the water in any such work to be discharged into any available stream ditch or watercourse Provided that any water so discharged shall so far as may be reasonably practicable

be free from mud solid or offensive matter and other matter injurious to fish or spawn or spawning beds or food of fish. A.D. 1931.
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(2) In the exercise of the power conferred by this section the Council shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration in accordance with the provisions of the Arbitration Act 1889.

(3) The power conferred by this section shall not be exercised so as to damage or injuriously affect the railways or works of the Southern Railway Company.

PART IV.

SUPPLY OF WATER.

28. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Council may erect or lay down for the purposes of the water undertaking : Application of Water-works Clauses Act 1847.

Provided that any telephone or telegraph posts wires conductors or apparatus constructed laid down erected or maintained under the provisions of this section shall not be used for the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed maintained and used as to prevent any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

29. The Council shall have and may exercise the powers which a local authority would have under section 54 (Power of carrying mains) of the Public Health Act 1875 with respect to the carrying of water mains within and without their district and for the purposes of that section the water limits shall be deemed to be the district of the Council. Further powers in relation to water mains.

A.D. 1931.

Meters in
streets to
measure
water or
detect
waste.

30. Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Council may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus :

Provided that the Council shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to
lay mains
in streets
outside for
purposes of
supply
within
water limits.

31. The Council in any streets or roads in the administrative county of the Isle of Wight outside the water limits which the Council shall require to break up for the purpose of laying pipes for supplying water within such limits shall have and be entitled to exercise all the rights powers and authorities conferred by the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and the said provisions shall apply to the said streets or roads as if the same were within the water limits but the Council shall not supply water outside the water limits.

Power to
lay pipes in
private
streets.

32. The Council may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply as if section 29 (Undertakers not to enter on private land without consent) of that Act were excepted from incorporation with this Act.

Pressure.

33. The water to be supplied by the Council need not be constantly laid on under pressure greater than can be supplied by gravitation from the reservoir from which the supply shall be taken.

34. The Council may require that any dwelling-house erected after the passing of this Act and situate on land at a higher level than fifty feet below the service reservoir from which a supply of water is furnished by them to such dwelling-house shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply for such dwelling-house for a period of twenty-four hours and the Council shall not be required to supply any such dwelling-house until the same is provided with a cistern or cisterns in conformity with the requirements of this section.

A.D. 1931.

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Cisterns to
be provided
for high
level
supplies.

35.—(1) The Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate per annum not exceeding ten per centum on the net annual value of the house or part of a house supplied. Provided that the Council shall not be required to afford a supply of water for domestic purposes to any premises at a less rate than threepence per week.

Rates for
domestic
purposes.

(2) The net annual value of any such house or part of a house as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues. Provided that where the water rate is chargeable on the net annual value of a part only of any hereditament entered in the valuation list such net annual value shall be a fairly apportioned part of the net annual value of the whole hereditament ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

(3) In addition to the foregoing rates the Council may charge in respect of every watercloset beyond the first two (for which no additional charge shall be made) on any premises supplied with water a sum not exceeding ten shillings per annum and in respect of every fixed bath beyond the first (for which no additional charge shall be made) capable of containing not more than fifty gallons and of every bath having an emptying aperture and capable of containing more than twenty gallons but not more than fifty gallons a sum not exceeding ten shillings per annum and in respect of every bath capable

A.D. 1931. of containing more than fifty gallons such sum as the Council may think fit.

The additional sums which may be charged under this subsection shall be paid quarterly in advance and be recoverable in all respects with and in the same manner as the water rate.

Revision of rates.

36.—(1) At any time during the period of three months before and three months after the coming into force within the water limits of any and every new valuation list under the Rating and Valuation Act 1925 the Council or the Isle of Wight Rural District Council or twenty consumers of water within the district or twenty consumers of water of the Council within the Isle of Wight Rural District may apply to the Minister for a revision of the rates and charges for the supply of water authorised by this Act or for the time being in force under any order of the Minister made in pursuance of this section and if and whenever any such application is so made and the Minister is satisfied that the cost of labour and materials or other circumstance affecting the water undertaking has substantially altered he may by order vary either by way of increase or decrease such rates and charges or any of them.

(2) The rates and charges prescribed in any such order shall be such amounts as will enable the Council to set aside in any year in addition to the amounts necessary for the purposes (a) (b) (c) and (d) set forth in subsection (1) of the section of this Act of which the marginal note is "Separate account to be kept" a reasonable sum as a contribution towards a reserve fund so long as such fund does not amount to the maximum reserve fund which may be prescribed by the Council in respect of the water undertaking under the section of this Act of which the marginal note is "Reserve funds for undertakings."

Rates payable by owners of small houses.

37.—(1) Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered

at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1931.
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(2) Nothing in this section shall limit or affect the operation of section 72 (Owners of houses not exceeding ten pounds rent to be liable to water rates) of the Waterworks Clauses Act 1847.

38.—(1) Subject to the provisions of this Act the Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by meter either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Supply by meter.

(2) Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

39. The price to be charged by the Council for a supply of water by meter shall not exceed three shillings per one thousand gallons. Provided that except as by this Act otherwise expressly provided the Council shall be entitled to charge a minimum sum of fifteen shillings in any quarter of the year for water supplied by meter. Price of water supplied by meter.

40. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Council be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-eighth part of such expense. Amendment of section 35 of Waterworks Clauses Act 1847.

41.—(1) Where water supplied for domestic purposes is used for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept or is used for watering gardens the Council if a hose-pipe or other similar apparatus is used may charge (except where the water so used is taken by meter) such sum not exceeding twenty shillings per annum as they may prescribe and (in cases of stables garages or premises where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first. Any sums chargeable under this Charges for hose-pipes and refrigerating apparatus.

A.D. 1931. subsection shall be in addition to the rates for the time being authorised by or under this Act for the supply of water for domestic purposes and shall be paid and recoverable in all respects with and in the same manner as the said rates.

(2) Where water supplied by the Council to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or for washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Council may if they think fit require that all water so used by means of any such hose-pipe or other apparatus shall be taken by meter and paid for at the rates for the time being in force for the supply of water by meter.

(3) Where a person who takes a supply of water from the Council otherwise than by meter desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Council may if they think fit require that all water used for or in connection with the said apparatus shall—

(i) be taken by meter on the conditions and at the rates for the time being in force for the supply of water by meter; or

(ii) be paid for on such other terms as may be agreed between such person and the Council:

Provided that if the person is taking a supply of water from the Council for domestic purposes only the minimum sum per quarter which may be demanded by the Council for the water used for or in connection with the refrigerating apparatus if taken by meter shall not exceed ten shillings.

Special
terms for
supplies to
caravans &c.

42.—(1) Notwithstanding anything in any Act relating to the Council a person shall not be entitled to demand or continue to receive from the Council a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Council to take a supply of water by meter and to pay to the Council such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in

order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Council by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure. A.D. 1931.
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(2) The sum so to be paid and the security so to be given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

(3) Notwithstanding anything in this section or any other provisions of or incorporated with this Act the Council shall not (unless required so to do by the Minister) supply water to any caravan shack hut tent or other like structure if the local authority for the district in which the structure is situated objects to the supply being given.

43.—(1) The Council shall not be bound to supply with water otherwise than by measure—

- (a) any premises used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or
- (b) any workhouse hospital (whether public or private) asylum (whether public or private) sanatorium club hotel public-house restaurant inn or common lodging-house; or
- (c) any boarding-house or public institution habitually occupied by at least twelve persons.
- Supply to houses partly used for trade &c.

(2) The amount to be paid under the provisions of this section exclusive of meter rent shall not in any one quarter be less than the sum which would have been payable in respect of such premises had the supply thereto been furnished at the rate for the time being payable for water supplied for domestic purposes.

44. The charge for water supplied for use in the erection of any building or part of a building shall not exceed seven shillings per one hundred pounds of the contract price for the building or if there is no such Price of supply for building purposes.

A.D. 1931. — contract price of the estimated total cost of the building and reasonable allowance shall be made by the Council for decorative or timber iron or steel work not requiring the use of water.

As to supply
to farm-
houses.

45.—(1) Where a supply of water to a farmhouse is used for farming purposes the Council may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Council to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate.

(2) If the owner or occupier of any farm premises within the water limits desires a supply of water for farming purposes and lays the necessary communication pipe from such premises to a main of the Council the Council shall supply to such owner or occupier by meter such quantity of water as the owner or occupier may from time to time reasonably require for such farming purposes. Provided that the Council shall not be required to supply water under this section at a pressure greater than that to be afforded by gravitation from the reservoir from which such water is supplied nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

Guarantees
by Isle of
Wight
Rural
District
Council.

46.—(1) The Isle of Wight Rural District Council may give any guarantee and enter into any contract for securing payment to the Council of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between the said rural district council and the Council for the purpose of or with respect to the providing or laying down by the Council of any main pipe or works for the supply of water within any part of the rural district of the Isle of Wight which is within the water limits.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of the said rural district council they may incur expenditure and the said rural district council may raise any money which may become payable to the Council under this section in like manner as money may be raised under the provisions of any such general Act.

(3) Provided that where such money is raised by the said rural district council by means of a rate such rate shall be or shall be deemed to be a special rate but the provisions of this subsection shall not affect the operation of section 56 (Provisions as to expenses of rural district councils) of the Local Government Act 1929. A.D. 1931.
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47.—(1) Any water rate payable to the Council may be collected together with the general rate and the same books may be used for the said rates. Water rate &c. may be collected with general rate.

(2) The general rate and water rate demand note and any other necessary documents to be used for the purposes of or in connection with the general rate or water rates shall be in such form as the Minister may from time to time prescribe.

(3) The Council may demand water rates and charges both within and beyond the district by half-yearly instalments in advance on the first day of April and the first day of October in every year but so that the same shall not be recoverable until the expiration of two months from the said first day of April and first day of October respectively.

(4) (a) The Council may from time to time if they think fit make an allowance by way of discount not exceeding five per centum on the amount due in respect of any water rate or charge or any instalment thereof from every person who pays the same within such time after demand of the rate or any instalment thereof as the case may be as the Council may prescribe.

(b) Provided that the same rate of discount shall be allowed in similar circumstances to every person from whom such water rate or charge or any instalment thereof shall be demanded.

(c) If and so long as the Council allow such discount notice of the effect of this enactment shall be endorsed on every demand note for water rates and charges.

48.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns Byelaws for preventing waste &c. of water.

A.D. 1931. — and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) The Council shall on or before the date upon which notice of any such byelaws is first given in any local newspaper in pursuance of section 184 (Confirmation of byelaws) of the Public Health Act 1875 send a copy of the byelaws to the Isle of Wight Rural District Council.

(4) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

(5) In so far as any byelaws made by the Council prescribe the size nature materials workmanship and strength of water fittings the same shall not apply to water fittings used on any premises belonging to the Southern Railway Company (other than premises to which the Council are bound under the Waterworks Clauses Act 1847 to afford a supply of water for domestic use).

Extension of
power to
inspect
premises.

49. In addition to the powers conferred by section 57 (Power to surveyor employed by undertakers to enter houses to inspect &c.) of the Waterworks Clauses Act 1847 the waterworks engineer of the Council or any person duly authorised by him in writing may at all reasonable times between the hours of seven o'clock and nine o'clock in the morning and also between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Council in order to examine if there be any waste or misuse of such water and if any person hinder any such engineer or authorised person from entering either

under the said section 57 or under this section or from making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds Provided that no person shall for the same offence have the water supplied to him turned off in pursuance of the said section 57 and also be liable to a penalty under this section. A.D. 1931.
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50. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Council. Maintenance of common pipe.

51.—(1) The Council shall not be bound to supply more than one house or part of a house occupied as a separate tenement by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement supplied by them with water : Separate communication pipes may be required.

Provided that this section shall not apply in the case of a communication pipe which at the passing of this Act is used for the supply of water to more than one house or part of a house unless and until such communication pipe becomes defective or requires renewal in which event the Council may require that a separate pipe be laid from the main pipe into each house or part of a house occupied as a separate tenement formerly supplied with water by means of that communication pipe.

(2) If the owner of any house or part of a house occupied as a separate tenement and supplied with water by the Council when so required in pursuance of the preceding subsection fails within a period of three months after the receipt of such requirement to provide a separate pipe from the main into such house or part of a house the Council may themselves do the work necessary in that behalf and may recover the cost incurred by them in so doing from the owner.

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As to communication pipes.

52.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the water limits execute such works on behalf of such owner or occupier and any expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made.

Power to Council to repair communication pipes.

53. If in the opinion of the Council any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Council are not under obligation to maintain it shall be lawful for the Council to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expense incurred by the Council for the purposes of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Council in like manner as the water rates in respect of the premises are recoverable. Provided that (except in case of emergency) the Council shall not under the powers of this section enter into any house or private premises unless they shall have given to the occupier of such house or premises (and if the water rates in respect of the house or premises are payable by the owner thereof to such owner) not less than twenty-four hours' previous notice of their intention so to enter.

Council to connect communication pipes with mains.

54. Notwithstanding anything in any Act relating to the Council the Council shall have the exclusive right of executing any works on any of the water mains of the Council for connecting any communication or service pipe therewith and the Council shall on the request of any owner or occupier of any premises who is entitled

to be supplied with water by the Council execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Council in so doing shall be repaid by the owner or occupier so requesting. A.D. 1931.

55. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell meters.

56.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained. Injuring meters &c.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the

A.D. 1931. — custody or control of the consumer shall be prima facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

As to
register of
meters.

57.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Council.

(2) Provided that if the Council and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

(3) If any meter used by a consumer of water be proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as rates for water are recoverable by the Council.

Notice to
Council of
connecting
or dis-
connecting
meters.

58. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

59. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

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Notice of
discon-
tinuance.

60.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter (but shall not manufacture) any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and execute all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
supply
water
fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

(3) Subject to the proviso to subsection (2) of this section all fittings let by the Council on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any premises at all times continue to be the property of and removable by the Council. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(4) Provided as follows—

(a) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon any moneys borrowed for those

A.D. 1931.

purposes and all sums applied to sinking fund for repayment of money so borrowed);

(b) When a demand note delivered by the Council to a consumer includes a sum charged by the Council in respect of providing such fittings or the fixing repairing or removal thereof such sum shall be clearly stated in such demand note;

(c) The total sums expended and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking for such year.

Penalty for interfering with valves &c.

61. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Council who shall without the authority of the Council turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Council and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves drawing off water &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Penalty for closing valves and apparatus.

62. Every person who shall wilfully (without the consent of the Council) or negligently close or shut off any valve cock or other work or apparatus belonging to the Council whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Council) be liable on conviction to a penalty not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing the valve fixed on his communication pipe.

Contracts for supplying water in bulk outside water limits.

63. The Council may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the water limits to such authority company or person respectively in

bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon : A.D. 1931.
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Provided that—

- (1) Such supply shall not be given except with the consent of any local authority company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water within the water limits :
- (2) Nothing in this section shall authorise the Council to lay any mains or other pipes or to interfere with any street beyond the water limits.

64. The Council may enter into and carry into effect agreements with any local authority company or person supplying water under parliamentary authority for the purchase of water in bulk by the Council for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Council for the purposes of the water undertaking. Purchase of water in bulk.

65. On and from the day of transfer—

- (a) The following sections of the Ventnor Gas and Water Act 1866 shall be repealed so far as those sections relate to the supply of water or the water undertaking of the Company :— Repeal of provisions of Ventnor Gas and Water Act 1866.

Section 2 (8 & 9 Vict. cc. 16 & 18
10 & 11 Vict. cc. 15 & 17 23 & 24
Vict. c. 106 and 26 & 27 Vict. c. 93
incorporated);

Section 3 (Interpretation of terms);

Section 5 (Incorporation of Company);

Section 24 (Limits of Act);

Section 27 (Company's powers on completion of purchase);

Section 28 (Additional lands may be purchased);

Section 51 (Incoming tenant not liable for arrears);

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Section 52 (Recovery of sums by action);
Section 53 (Recovery of rates and charges
for supply of gas and water);
Section 57 (Liability to gas rate not to
disqualify justices);

(b) The following sections of the said Act shall be
wholly repealed :—

Section 45 (Power as to waterworks);
Section 46 (Rates at which water is to be
supplied for domestic purposes);
Section 47 (Regulations to be made for
preventing waste of water &c.);
Section 48 (Water not necessarily under
pressure);
Section 49 (Water may be supplied by
agreement);
Section 50 (Company may remove pipes
from unoccupied premises on giving notice
to owner);
Section 60 (Saving rights of Isle of
Wight Railway Company).

As to supply
of water to
Southern
Railway
Company.

66. For the further protection of the Southern
Railway Company (in this section referred to as “the
railway company”) the following provisions shall not-
withstanding anything contained in this Act or in any
agreement between the Company and the railway
company and unless otherwise agreed in writing between
the Council and the railway company apply and have
effect (that is to say) :—

(1) Subject to the provisions of this section the
Council shall as from the day of transfer give
to the railway company and the railway com-
pany shall be entitled to receive from the
Council without payment and free of all expense
to the railway company a supply of water
to the extent of one million eight hundred and
twenty-five thousand gallons in every period of
one year (or one million eight hundred and thirty
thousand gallons in any leap year) expiring on
the anniversary of the day of transfer Provided
that the Council shall not be required to give
to the railway company under the provisions
of this section a supply of water in excess of

six thousand gallons in any period of twenty-four hours commencing at midnight unless the giving of such additional supply will not interfere with the supply of water to other consumers within the water limits :

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- (2) The said supply of water shall be given by the Council to the railway company at their existing water tank at Ventnor station or at any other tank or receptacle which may be substituted therefor in substantially the same position Provided that the Council shall not be required to give the said supply of water at a higher level than that of the intake of the said existing water tank :
- (3) The railway company shall pay to the Council for any water supplied to them by the Council in excess of one million eight hundred and twenty-five thousand gallons in any period of one year or one million eight hundred and thirty thousand gallons in any leap year as aforesaid at the rate of one shilling and sixpence for every thousand gallons or part thereof :
- (4) Any difference which may arise between the Council and the Company under the provisions of this section shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

67. Nothing contained in this Act shall in any way authorise the Council to enter upon take use or interfere with any of the lands stations railways tunnel streets roads tramroads sidings or works of the Southern Railway Company without the previous consent in writing of the said company.

Saving
rights of
Southern
Railway
Company.

PART V.

FINANCIAL AND MISCELLANEOUS.

68.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the

Power to
borrow.

A.D. 1931. — respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Council and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act shall respectively be "the prescribed period") mentioned in the third column of the said table (namely):—

1	2	3
Purpose.	Amount.	Period for Repayment.
(a) For the purchase of the water undertaking of the Company.	£ 21,500	Forty years from the day of transfer.
(b) For defraying the costs and expenses incident to the purchase of the undertaking of the Company and to the transfer of such undertaking to the Council (other than the costs of this Act) and for the payment of any other sums payable by the Council in connection with the said transfer.	The sum requisite	Forty years from the day of transfer.
(c) For and in connection with the purchase of lands and easements.	1,000	Sixty years from the date or dates of borrowing.
(d) For the provision of service tanks -	3,500	Forty years from the date or dates of borrowing.
(e) For the reconstruction of buildings &c.	1,000	Forty years from the date or dates of borrowing.
(f) For pumping machinery - -	1,500	Twenty years from the date or dates of borrowing.
(g) For new mains extensions of mains and other waterworks purposes.	6,750	Forty years from the date or dates of borrowing.
(h) The payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2) (a) The Council may also borrow with the consent of the Minister such further moneys as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed

by the Minister and that period shall be the prescribed period for the purposes of this Act. A.D. 1931.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Council may mortgage or charge the revenues of the Council.

69. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act. Mode of raising money.

70. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):— Provisions of Public Health Act 1875 as to mortgages to apply.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

71. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months from the date of borrowing. Mode of payment off of money borrowed.

72.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act or any other statutory borrowing power (except moneys raised by the issue of stock) such fund shall be formed and maintained either— Sinking fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the

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repayment of which the sinking fund is formed
A sinking fund so formed is hereinafter called a
“non-accumulating sinking fund”; or

- (b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were

invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments. A.D. 1931.
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(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Minister that any such increase is necessary the Council shall increase the payments to such extent as the Minister may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of the Minister discontinue the annual payments

A.D. 1931. — to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Minister may determine.

(12) All moneys which at the date of the passing of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof may be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

Use of
moneys
forming
part of
sinking and
other funds.

73. Notwithstanding anything contained in any previous enactment the Council may use for the purpose of any statutory borrowing power exerciseable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals depreciation accident or other similar fund (in this section referred to as "the lending fund") subject to the following conditions :—

- (1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable :

Provided that the Council shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not

repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power : A.D. 1931.
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- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

74.—(1) Notwithstanding anything contained in any other Act relating to the Council where the Council have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted

A.D. 1931. — under this section and all such sums shall be repaid within the periods and by the means within and by which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the clerk a register of the mortgages granted under this section and within one month after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the clerk a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the

full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby. A.D. 1931.
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(11) If the clerk wilfully neglect or refuse to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

75.—(1) The Council shall have power—

Power to
re-borrow.

- (a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be repaid forthwith; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or

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- (c) out of moneys derived from the sale of land; or
(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Evidence of
transfer or
transmis-
sion of
securities.

76. It shall not be obligatory on the Council to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the clerk or registrar of stock of the Council of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Interest on
mortgages
held jointly.

77. Where more persons than one are registered as joint holders of any mortgage of the Council any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Council by any other of them.

Receipt in
case of
persons not
sui juris.

78. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Council.

Council not
to regard
trusts.

79. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register.

80.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall be not less than one thousand pounds in the whole.

A.D. 1931.

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Appoint-
ment of
receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

81. A person lending money to the Council shall not be bound to inquire as to the observance by the Council of any provisions of any Act relating to the Council or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection
of lender
from
inquiry.

82. All moneys borrowed under the provisions of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Application
of moneys
borrowed.

83. Any expenses of the execution by the Council of this Act with respect to which no other provision is made shall be defrayed by the Council out of the general rate fund.

Expenses of
execution
of Act.

84.—(1) The clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Council under any statutory borrowing power.

Return to
Minister
with respect
to repay-
ment of
debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the chief accounting officer of the Council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for every offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

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(3) If it appear to the Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Council shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment which was in force in the district immediately before the passing of this Act and which requires an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Application
of revenue
and pay-
ment of
expenses of
under-
takings.

85.—(1) All money received by the Council on account of the revenue of the water undertaking of the pier undertaking or of any other undertaking for the time being of the Council from which revenue is derived shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of any such undertaking shall be paid out of that fund.

(2) The Council may (if they think fit) apply money received by them on account of the revenue of any of the undertakings referred to in subsection (1) of this section in the construction renewal extension and improvement of the works and conveniences for the purposes of such undertakings respectively.

(3) Section 32 (Application of pier revenue) and section 33 (Deficiency of pier revenue to be charged on district fund) of the Ventnor Pier Order 1910 are hereby repealed.

Separate
accounts
to be kept.

86.—(1) Notwithstanding the provisions of any enactment to the contrary the Council shall keep their accounts so as to distinguish capital from revenue and

as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Council referred to in the last preceding section of this Act (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

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- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed for the purposes of the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Council are from time to time authorised to maintain.

(2) The Council shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Council keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

87.—(1) The Council may (if they think fit) provide reserve funds in respect of the water undertaking and their pier undertaking by setting aside such amounts as they may from time to time think reasonable and investing the same subject to the provisions of the section of this Act of which the marginal note is "Use of moneys forming part of sinking and other funds" in statutory securities until the funds so formed amount respectively

Reserve
funds for
under-
takings.

A.D. 1931. — to the maximum reserve funds for the time being prescribed by the Council in respect of those undertakings respectively.

(2) The reserve funds formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Council from the water undertaking or their pier undertaking as the case may be or to meet any extraordinary claim or demand or unforeseen accident or extraordinary damage at any time arising against the Council in respect of those undertakings respectively or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of those undertakings respectively and so that if those funds respectively be at any time reduced they may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the said reserve funds respectively under the foregoing provisions although such funds respectively may not at the time have reached or may have been reduced below the prescribed maximum.

(4) The income of any such reserve fund shall be treated as part of the revenue of the water undertaking or of the said pier undertaking as the case may be.

(5) Any money or investments at the date of the passing of this Act forming part of the contingency fund authorised by section 31 (Contingency fund) of the Ventnor Pier Order 1910 shall be transferred to and form part of the reserve fund authorised by this section in respect of the Council's pier undertaking and the said section 31 is hereby repealed.

Annual
account of
pier under-
taking to be
sent to
Ministry of
Transport.

88.—(1) The Council shall within two months after the date to which the annual accounts and balance sheet of their pier undertaking are made up send a copy of the same to the Ministry of Transport and the sixteenth section of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Council and any and every such accounts.

(2) The Council shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds

for every week or part of a week during which they refuse or neglect to comply with the foregoing provisions. A.D. 1931.

(3) The accounts of the Council referred to in this section and in section 50 of the Harbours Docks and Piers Clauses Act 1847 respectively shall be made up to the end of the thirty-first day of March in each year.

(4) Section 35 (Annual accounts to be sent to Board of Trade) of the Ventnor Pier Order 1910 is hereby repealed.

89.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Authentication and service of notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

90. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or any committee of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

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General
provisions
as to
byelaws.

91. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Council under the powers of this Act.

Damages
and charges
to be settled
by court.

92. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Recovery of
demands.

93. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Several
sums in one
summons.

94. Where the payment of more than one sum by any person is due to the Council under any Act or Order from time to time in force within the district any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Informa-
tions by
whom to
be laid.

95. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Recovery of
penalties
&c.

96. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

97. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

A.D. 1931.

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Saving for
indictments
&c.

98. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

Application of
section 265 of
Public Health
Act 1875.

99. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Judges not
disqualified.

100.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him by or the giving of any consents under this Act and the inspectors of the Minister shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries by
Minister.

(2) The Council shall pay to the Minister any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

101. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the

Crown
rights.

A.D. 1931. Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.
—

Costs of
Act.

102. The costs charges and expenses preliminary to and of and incidental to preparing applying for obtaining and passing this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate fund and the general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULES referred to in the
foregoing Act.

A.D. 1931.

THE FIRST SCHEDULE.

THE SCHEDULED AGREEMENT.

AN AGREEMENT made this twenty-seventh day of November one thousand nine hundred and thirty between THE VENTNOR URBAN DISTRICT COUNCIL (hereinafter called "the Council") of the one part and THE VENTNOR GAS AND WATER COMPANY (hereinafter called "the Company") of the other part.

WHEREAS the Company were incorporated by the Ventnor Gas and Water Act 1866 and by that Act were authorised to supply gas and water within the parish of Newchurch (otherwise Newchurch South) and the parishes of Bonchurch Godshill and St. Lawrence or any of them or any part thereof respectively all in the Isle of Wight and county of Southampton except so much of such respective parishes as is situate at a greater distance inland than one mile measured in a straight line from any part of the seashore on the southern side of the Isle of Wight between the eastern boundary of the parish of Bonchurch and the western boundary of the parish of Saint Lawrence :

And whereas the parish and urban district of Ventnor have been formed from parts of the said parishes of Newchurch and Godshill and the existing parishes of Newchurch Bonchurch Godshill and St. Lawrence are in the rural district of the Isle of Wight in the administrative county of the Isle of Wight :

And whereas the Acts at present regulating the undertaking of the Company are set out in the Schedule hereto :

And whereas the Council intend to promote in the next available session of Parliament a Bill for the purpose (inter alia) of authorising the acquisition by the Council of so much of the undertaking of the Company as comprises the water undertaking (hereinafter called "the water undertaking") and the Company have provisionally agreed that the water undertaking shall be transferred to and be vested in the Council upon the terms and conditions hereinafter set forth :

A.D. 1931.

Now it is hereby agreed as follows :—

1. The Company shall sell and the Council shall purchase as a going concern on the appointed day hereinafter referred to free from any then existing debentures mortgages debts incumbrances obligations and liabilities whatsoever the water undertaking which shall include subject as hereinafter provided all the lands buildings waterworks reservoirs tanks wells streams springs waters water supplies sources of supply adits machinery mains pipes plant and apparatus contracts plans engineering reports books and other documents and stores and all other the property of the Company and the rights powers easements and privileges vested in and belonging to or had or enjoyed by the Company exclusively in connection with the water undertaking and the full benefit of all contracts and agreements entered into by the Company in connection with the water undertaking Provided that the Council shall not purchase or acquire under this agreement—

- (1) Any lands buildings works machinery mains pipes plant and apparatus contracts plans engineering reports books or other documents or stores rents rates book and other debts or sums of money due to the Company or any other the property of the Company or the rights powers easements and privileges vested in and belonging to or had or enjoyed by the Company in connection with the gas undertaking of the Company;
- (2) The directors minute books and other books and papers relating to the stock (share) holders members and constitution of the Company; and
- (3) The rates rents and book and other debts or sums of money received by or due to the Company or accrued due at the date of transfer in respect of or in connection with the water undertaking.

2. The consideration for the sale and purchase shall be the payment by the Council to the Company on the Company's usual quarter day (which is hereinafter referred to as "the appointed day") next after the day on which the Royal Assent shall have been given to the Bill hereinbefore referred to of the sum of £21,500.

3. If for any reason the said sum shall not be paid on the appointed day the Council shall pay interest thereon at the rate of 5 per centum per annum from the appointed day until actual payment of the said sum.

4. The receipt in writing of three directors of the Company for any money paid to the Company by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being

bound to see to the application thereof and from being answerable or accountable for the loss misappropriation or non-application thereof Provided that if the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster General for and on behalf of the Supreme Court and a receipt given to the Council by the cashier of the said bank for such money shall have the same effect as a receipt of such three directors.

A.D. 1931.
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5. On payment by the Council of the said sum the water undertaking shall be transferred to and be vested in the Council freed from any then existing debentures mortgages debts incumbrances obligations and liabilities whatsoever and the day upon which the said sum shall be paid is in this agreement called the "day of transfer."

6. Until the day of transfer the Company shall maintain and carry on the water undertaking as heretofore in the ordinary course of business maintaining normal quantities of consumers stores and paying up to that day immediately they become due for payment all proper expenses of carrying on the water undertaking all of which shall be apportioned up to that day but the Company shall not without the previous consent of the Council under the hand of their clerk—

(a) make or enter into any new contract agreement liability or other obligation in respect thereof which shall involve a capital expenditure exceeding £100 nor

(b) except as hereinafter provided increase the salary or wages which were payable to or alter the terms which were applicable to any officer or servant employed by the Company in connection with the water undertaking on the date of this agreement Provided that the consent of the Council to any such increase of salary or wages shall not be unreasonably withheld Provided further that the consent of the Council shall not be required in the case of automatic increase of salary or wages forming part of the terms of service of any officer or servant employed by the Company.

7. The Council shall not be bound to take over or employ any officer or servant of the Company or be liable to pay compensation to any officer or servant of the Company in respect of any loss of office or loss or diminution of salary or income by reason of the transfer of the water undertaking to the Council.

8. The Council shall after the purchase of the water undertaking is completed give a supply of water to the Company's gasworks in Ventnor by meter at a charge equivalent to 50 per cent. of the usual scale charge by meter payable by a consumer of a similar quantity of water.

A.D. 1931.
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9. The profits of the water undertaking on and from the day of transfer shall belong to the Council and where necessary all revenue received by or due to the Company in advance and all parochial rates rents taxes and other outgoings shall be apportioned between the Company and the Council.

10.—(1) The Council shall be entitled on the transfer of the water undertaking to all books and documents of the Company relating exclusively to the water undertaking and shall be supplied by the Company free of cost to the Council with copies for such reasonable period of years as the Council may require of so much as relates to the water undertaking only of any book retained by the Company.

(2) So far as may be necessary for any of the purposes of this agreement (a) the Council at any time before or after the transfer of the water undertaking shall be entitled to have access to and to take copies of all books and other documents retained by the Company and relating to any matter in connection with the water undertaking (b) after the said transfer the Company their solicitors and agents shall be entitled to have access to and to take copies of all books and documents handed over or to be handed over to the Council.

11. The foregoing provisions are subject to confirmation by Parliament and the Council shall use their best endeavours to secure the passing into law in the next available session of Parliament of an Act to confirm this agreement and to embody any provisions necessary for giving effect to the matters dealt with in this agreement.

12. The Council shall at the request of the Company insert in the said Bill such clauses as the Company may desire to provide for the distribution of the purchase money payable by the Council under clause 2 hereof for the winding up of the water undertaking and the consequent reduction of the capital of the Company and any other provisions which the Council may reasonably and can validly approve to facilitate the amalgamation of the Company's gas undertaking with the undertaking of the Shanklin Gas Company.

13. The Company shall not oppose the Bill for the said Act except so far as may be necessary for seeing that the terms of this agreement are given effect to.

14. This agreement shall be subject to such alterations as Parliament may think fit to make therein but if the Committee on the said Bill make any material alteration herein it shall be competent to either party hereto to withdraw herefrom and upon any such withdrawal the promoters shall not proceed further with the Bill.

15. If for any reason the purchase of the undertaking shall not have been completed within one month after the appointed

day the Company shall be at liberty to determine this agreement by notice in writing to the Council and thereupon this agreement shall become null and void and the right of the Council under this agreement or under the said Bill to purchase the water undertaking shall lapse. A.D. 1931.
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16. If the said Bill shall be withdrawn or rejected this agreement shall become null and void.

17. The costs and expenses properly incurred by the Company in connection with this agreement and the said Bill shall be paid by the Council.

18. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to anything not fully provided for or as to the rights liabilities or duties of either party hereunder the same shall be referred to a single arbitrator to be appointed failing agreement by the President of the Law Society and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act.

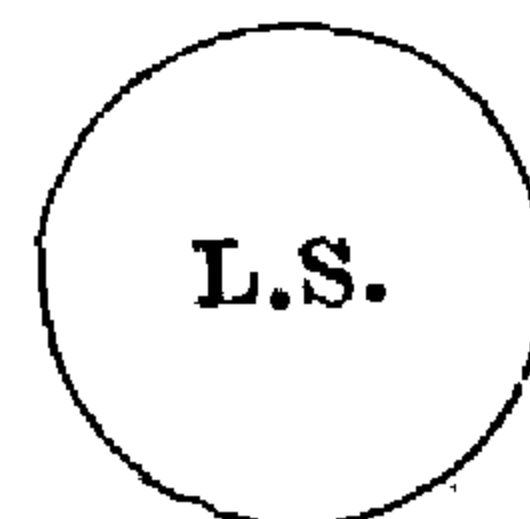
In witness whereof the Council and the Company have caused their respective common seals to be affixed the day and year first above written.

THE SCHEDULE ABOVE REFERRED TO.

The Ventnor Gas and Water Act 1866.

The Gas and Water Orders Confirmation Act 1879.

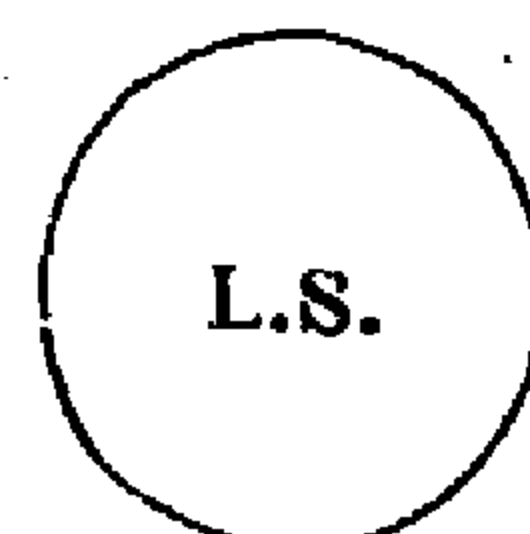
The common seal of the
Ventnor Urban District
Council was hereunto
affixed in the presence of }



A. S. MOORMAN
Chairman.

JAMES WEARING
Clerk.

The common seal of the
Ventnor Gas and Water
Company was hereunto
affixed in the presence of }



V. G. MIDDLETON
ALBERT OLIVER SCOTT } Directors.
LESLIE G. PAYNE
Secretary.

A.D. 1931.

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

URBAN DISTRICT OF VENTNOR.

By virtue of the Ventnor Urban District Council Act 1931 and of other their powers in that behalf them enabling the Ventnor Urban District Council (hereinafter referred to as "the Council") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the Council by _____ (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the _____ day of _____ nineteen hundred and _____ until payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year And it is hereby agreed that the principal sum shall be repaid at the town hall in the said district [(subject as hereinafter provided) on the _____ day of _____ nineteen hundred and _____ or (if not repaid on that date) at any time thereafter on the expiration of three calendar months' notice in writing by the Council to the mortgagee or by the mortgagee to the Council] [by _____]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Council and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the clerk of the Council for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this

day of

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named

consenting

the within-mentioned time for repayment of the within-mentioned principal sum of

is hereby extended

to the

day of

[and the interest to be

paid thereon on and from the

day of

is hereby declared to

be at the rate of

per centum per annum].

Dated this

day of

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]

of

in consideration of the sum of

pounds paid to

me by

of

(hereinafter referred to as "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written security] [the mortgage number

of the revenues of the Ventnor Urban District Council bearing

date the

day of

_____]

and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this

day of

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